

CONSTITUTION AND BYLAWS OF TUJENGE PAMOJA INVESTMENT CHAMA

Adopted: January 15, 2024 Official M-Pesa Buy Goods Till Number: 888444 Official Bank: Equity Bank Kenya (Account No. 0123456789)

ARTICLE 1: OBJECTIVES

1. To pool financial resources for joint investments in real estate, government bonds, and high-yield savings.
2. To provide a revolving loan fund for members at affordable interest rates.
3. To foster financial discipline and social welfare among members.

ARTICLE 2: MEMBERSHIP & CONTRIBUTIONS

1. **Standard Contribution:** Every member is mandated to contribute a minimum of **Ksh 5,000** per month.
2. **Payment Deadline:** All monthly contributions must be received by the **5th day of every month** at 11:59 PM EAT.
3. **Approved Payment Channels:** All contributions must be strictly deposited via the official M-Pesa Buy Goods Till Number (**888444**) or via direct bank transfer to the official Equity Bank account.
4. **Invalid Payments:** Cash payments to the Treasurer or funds sent to the personal M-Pesa numbers of any official (including the Chairperson or Treasurer) are **strictly prohibited**. A payment sent to a personal line is legally considered unpaid until the funds are reversed and officially deposited into the Chama's Till or Bank Account.

ARTICLE 3: FINES AND PENALTIES

1. **Late Contributions:** Any monthly contribution received after the 5th of the month will attract a flat penalty of **Ksh 500** per week.
2. **Erroneous Transfers:** If a member sends their contribution to the wrong M-Pesa Till or an unapproved personal number, they will be charged a **Ksh 200** administrative fine for ledger reconciliation, even if the money is eventually recovered.
3. **Meeting Absenteeism:** The Chama meets on the first Sunday of every month. A member absent without providing a minimum of 24 hours' notice to the Secretary will be fined **Ksh 300**.
4. **Lateness to Meetings:** Arriving more than 30 minutes late to an official meeting incurs a fine of **Ksh 100**.
5. **Deduction Priority:** When a member makes a deposit, funds will first be allocated to clear any outstanding fines before being credited to their savings/shares ledger.

ARTICLE 4: LOANS AND GUARANTORS

1. **Loan Limits:** A member may borrow up to three (3) times their total accumulated savings.
2. **Interest Rate:** Loans attract a flat interest rate of **10%** per month on the principal balance.
3. **Guarantors:** Any loan exceeding a member's total savings must be guaranteed by at least two (2) fully paid-up members. Guarantors sign over liability; if the borrower defaults, the guarantors' shares will be seized proportionally to cover the debt.
4. **Defaulting:** A member is considered in default if they fail to make a loan repayment for three (3) consecutive months. Upon default, the Chama retains the right to liquidate the member's savings to clear the loan, seize guarantors' shares, and expel the member.

ARTICLE 5: WITHDRAWAL AND EXPULSION

1. **Voluntary Withdrawal:** A member wishing to exit the Chama must give a 60-day written notice. Their savings will be refunded minus a **10%** early exit penalty, provided they have no outstanding loans or guaranteed liabilities.
2. **Expulsion:** A member may be expelled by a two-thirds (2/3) majority vote for severe misconduct, fraud, or consistent failure to contribute for six (6) consecutive months.

ARTICLE 6: DISPUTE RESOLUTION

1. All disputes regarding payments, fines, and ledger balances must be submitted to the Treasurer in writing (or via official WhatsApp).
2. The Treasurer is bound to consult the official M-Pesa statements and this Constitution to mediate the dispute.
3. If a member claims a payment was made, the burden of proof lies entirely on the member to provide the verifiable M-Pesa transaction code.
4. Decisions governed directly by the clauses in this Constitution are final and binding.